

The M.P. (Lok Abhikaranon Ke Madhyam Se) Dindayal Antyoday Karyakram Ka Karyanvayan Adhiniyam, 1991

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State of Madhya Pradesh - Act

The M.P. (Lok Abhikaranon Ke Madhyam Se) Dindayal Antyoday Karyakram Ka Karyanvayan Adhiniyam, 1991

MADHYA PRADESH

India

The M.P. (Lok Abhikaranon Ke Madhyam Se) Dindayal Antyoday Karyakram Ka Karyanvayan Adhiniyam, 1991

Act 14 of 1991

Published on 8 August 1991

Commenced on 8 August 1991

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The M.P. (Lok Abhikaranon Ke Madhyam Se) Dindayal Antyoday Karyakram Ka Karyanvayan Adhiniyam, 1991

M.P. Act

No. 14 of 1991

Received the assent of the Governor on 7-8-1991; assent first published in the "Madhya Pradesh Gazette (Extraordinary)", dated 8-8-1991.

An Act to provide for implementation of Dindayal Antyoday Karyakram through public agencies and matters ancillary thereto.

Be it enacted by the Madhya Pradesh Legislature in the Forty-second Year of the Republic of India as follows :-

1.

Short title and commencement.

(1)

This Act may be called the Madhya Pradesh (Lok Abhikaranon Ke Madhyam Se) Dindayal Antyoday Karyakram Ka Karyanvayan Adhiniyam, 1991.

(2)

It shall come into force on such [date]

[w.e.f. 2-9-1991.]

as the State Government may by notification, appoint.

2.

Definitions.

(1)

In this Act, unless the context otherwise requires,-

(a)

"Dindayal Antyoday Karyakram" means the Karyakram specified in the Schedule;

(b)

"State Level Committee" means a Committee constituted under Section 3;

(c)

"District Level Committee" means a Committee constituted under Section 3;

(cc)

["Town Level Committee" means a Committee constituted under Section 3;]

[Inserted by M.P. Act No. 6 of 1992 (w.e.f. 29-2-1992).]

(d)

"Block Level Committee" means a Committee constituted under Section 3;

(e)

"Gram Panchayat Level Committee" means a Committee constituted under Section 3.

(2)

The words and expressions used but not defined in this Act and defined in the Madhya Pradesh Panchayat Raj Adhiniyam, 1990 (No. 13 of 1990) shall have the meaning assigned to them in that Act.

3.

Constitution of Committees at various levels for implementation of Dindayal Antyoday Karyakram.

- With a view to implementing the Madhya Pradesh Dindayal Antyoday Karyakram through public agencies :-

(a)

the State Government may by an order constitute,-

(i)

a State Level Committee for the whole State;

(ii)

District Level Committee for every revenue district in the State,

consisting of such number of persons and for such period as may be specified in such order.

(b)

the State Government or such officer as may be authorised by the State Government in this behalf may, by order, constitute,-

(i)

[a Town Level Committee for every Municipal Corporation, Municipality and Special Area Development Authority in the State;]

[Sub-clauses (i) and (ii) be renumbered as (ii) and (iii) and new clause (i) Inserted by M.P, Act No 6 of 1992 (w.e.f. 29-2-1992).]

(ii)

a Block Level Committee for every development block in the State; and

(iii)

Gram Panchayat Level Committee for every Gram Panchayat in the State;

consisting of such number of persons and for such period as may be specified in such order :

Provided that the State Government may, at any time, by general or special order reduce the period of any Committee or reduce the term of the member thereof.

4.

Power to entrust implementation of various schemes of Dindayal Antyoday Karyakram to the State Level Committee, [District Level Committee, Town Level Committee]

[Substituted by M.P. Act No. 6 of 1992 (w.e.f. 29-2-1992).]

, Block Level Committee and Gram Panchayat Level Committee.

- The State Government may, by order, entrust to a State Level Committee, [District Level Committee, Town Level Committee]

[Substituted by M.P. Act No. 6 of 1992 (w.e.f. 29-2-1992).]

, Block Level Committee or a Gram Panchayat Level Committee all or any of the schemes of the Dindayal Antyoday Karyakram as may be specified in such order for the purpose of monitoring and review. For discharging the functions the [District Level Committee, Town Level Committee]

[Substituted by M.P. Act No. 6 of 1992 (w.e.f. 29-2-1992).]

, the Block Level Committee and the Gram Panchayat Level Committee, shall be guided by such directions as the State Government may from time to time, give to it in writing.

5.

[Superintendence and guidance of Committees.

[Substituted by M.P. Act No. 6 of 1992 (w.e.f. 29-2-1992).]

- For discharging the functions entrusted under Section 4, the Gram Panchayat Level Committee shall be subject to superintendence and guidance of the Block Level Committee and District Level Committee. The Town Level Committee and the Block Level Committee shall be subject to the superintendence and guidance of District Level Committee and the District Level Committee shall be subject to the superintendence and guidance of the State Level Committee.]

6.

Officer and Authority to have due regard to the guidance given by the Committees constituted under this Act.

- The officer or authority exercising the power and performing the duties under any Act, shall, in exercise or performance of such powers or duties, give due consideration to the guidance given by the Committees constituted under the Act.

7.

Power to amend Schedule.

- The State Government may, by notification, amend the Schedule and thereupon the said Schedule shall stand amended accordingly.

8.

Power to make rules.

(1)

The State Government may, by notification, make rules for carrying into effect the provisions of this Act.

(2)

All rules made under this section shall be laid on the table of the Legislative Assembly.

Schedule

[See Section 2 (1)(a)]

1. Integrated rural development programme.

2. Employment oriented programme in rural and urban areas.

3. Development of Animal Husbandry programme as a village industry for landless, marginal and small farmers.

4. Social forestry and improvement of degraded forests programme to provide employment to Adivasis, Harijans and economically weaker sections.

5. Settlement and over all development of forest lands under encroachment as per rules.

6. Programmes for development of cottage and village industries.

7. Programme to provide cheap housing or residential plots to jhuggi and hutment dwellers and homeless persons in rural areas.

8. Programme for pension to destitutes.

9.

Special Welfare Programmes for Adivasis, Harijans and economically weaker sections. 3

10.

Programme for the eradication of illiteracy and compulsory and free primary education for the children in the age group of 6 to 14 years.

11.

Programme for providing safe drinking water in every village.

12.

Programme for electrification of every village.

13.

Jeevan Dhara Programme.

14.

Public Health and Family Welfare Programme.

15.

Woman and child development programme.

16.

Programme for the construction of approach roads in the rural areas.

Notifications

[Notification No. F. 8 (1)-90-20-Part-I-XLIII, dated 27-8-1991.]

[Published in M.P. Rajpatra (Asadharan), dated 28-8-1991 at page 1457.]

- In exercise of the powers conferred by sub-section (2) of Section 1 of the Madhya Pradesh (Lok Abhikaranon Ke Madhyam Se) Dindayal Antyoday Karyakram Ka Karyanvayan Adhiniyam, 1991 (No. 14 of 1991), the State Government hereby appoints the 2nd day of September, 1991 as the date on which the said Act shall come into force.

[Notification No. F. 8 (1)-90-20-Part-XLIII, dated 25-9-1991.]

[Published in M.P. Rajpatra (Asadharan), dated 25-9-1991 at page 1507.]

- In exercise of the powers conferred by clause (b) of Section 3 of the Madhya Pradesh (Lok Abhikaranon Ke Madhyam Se) Dindayal Antyoday Karyakram Ka Karyanvayan Adhiniyam, 1991 (No. 14 of 1991), the State Government hereby authorises all the Collectors of the Revenue districts to constitute a Block Level Committee for every development block and the Gram Panchayat Level Committee for every Gram Panchayat with their respective jurisdiction.

[Notification No. F. 8 (1)-90-20-Part-XLIII, dated 9-4-1992.]

[Published in M.P. Rajpatra (Asadharan), dated 7-5-1992 at page 459.]

- In exercise of the powers conferred by clause (b) of Section 3 of the Madhya Pradesh (Lok Abhikaranon Ke Madhyam Se) Dindayal Antyoday Karyakram Ka Karyanvayan Adhiniyam, 1991 (No. 14 of 1991), the State Government hereby authorises all the Collectors of the Revenue Districts to constitute a Town Level Committee for every Municipal Corporation, Municipalities and Special Area Development Authority within their respective jurisdictions.

[Notification No. F. 9 (39)-92-20-Part-XLIII, dated 24-12-1992.]

[Published in M.P. Rajpatra (Asadharan), dated 24-12-1992 at page 1423.]

- In exercise of the powers conferred by proviso to Section 3 of the Madhya Pradesh (Lok Abhikaranon Ke Madhyam Se) Dindayal Antyoday Karyakram Ka Karyanvayan Adhiniyam, 1991 (No. 14 of 1991), the State Government hereby reduces the period of all District Level Committees, Town Level Committees, Block Level Committees and Gram Panchayat Level Committees constituted under the said section upto 31st December, 1992.

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